

		a subsequent PAGA representative suit that is wholly subsumed by a prior PAGA representative suit—i.e., where the second suit alleges the same Labor Code violations based on the same facts and theories as the prior suit—does not eliminate the code enforcement mechanism provided by PAGA: the first suit proceeds, thus fulfilling PAGA's purpose.” (<i>Id.</i> at 260 [emphasis added].) Pursuant to the doctrine of exclusive concurrent jurisdiction, this action should only be stayed if it involves the same Labor Code violations and based on the same facts and theories as the <i>Arzooian Consolidated Action</i>. However, as there are claims in this action not at issue in the earlier filed action, this action is not “wholly subsumed” by the earlier action. (<i>Shaw</i>, 78 Cal. App. 5th at 257.) The court for the <i>Arzooian PAGA Action</i> does not have “the power to litigate all the issues and grant all the relief to which any of the parties might be entitled under the pleadings [in this action].” (<i>Id.</i> at 256.) Thus, the doctrine of exclusive concurrent jurisdiction does not apply. The court also declines to exercise its discretion to stay the case as it would not promote the interests of justice or conserve judicial resources. This action involves multiple claims not at issue in the <i>Arzooian Consolidated Action</i>, and Defendant has not adequately demonstrated that a stay of this action is warranted in light of these distinct claims. Thus, Defendant has not demonstrated adequate grounds to justify a stay and this Motion is denied. Defendant is ordered to give notice of this ruling.
6	30-2013-00637388 Estrada vs. Automobile Club of Southern California	Defendant Automobile Club of Southern California’s (“Defendant”) Renewed Motion for Judgment on the Pleadings is GRANTED WITHOUT LEAVE TO AMEND. On March 13, 2013, Plaintiff Victor Estrada (“Plaintiff”) filed this action against Defendant and Does 1-50, which included a Tenth Cause of Action for Violation of the Private Attorney General Act (“PAGA”). (ROA 2.) On July 29, 2019, Plaintiff filed the operative First Amended Complaint (“FAC”). (ROA 399.) The Tenth Cause of Action is the only remaining claim in this action as the other claims have been dismissed. (ROA 843.)

		In the FAC, Plaintiff seeks civil penalties under PAGA after sending notice to the California Labor Workforce and Development Agency (“LWDA”) on December 3, 2012, and an amended notice sent on November 25, 2014. (FAC ¶ 81.) Plaintiff seeks penalties pursuant to Labor Code section 2699.3(d) for the one-year period beginning with the demand letter sent on August 30, 2012 for violations of Labor Code sections 202, 203, 204, 223, 226, 226.7, 510, 512, 1194, 1197, 1198, 1199, and 2802, as well as attorneys’ fees and costs pursuant to Labor Code section 2699(g)(1). (<i>Id.</i> ¶ 80.) Defendant seeks an order for judgment on the pleadings without leave to amend on the grounds that the remaining PAGA claim in this action has been extinguished by the settlement and final judgment in Los Angeles County Superior Court case <i>Blanca Gutierrez, et al. v. ACSC Management Services, Inc., Auto Club Enterprises, and Automobile Club of Southern California</i>, Case No. 19STCV44116 (“<i>Gutierrez</i>”), pursuant to the doctrines of res judicata and claim preclusion. “The tenets of res judicata prescribe the preclusive effect of a prior final judgment on the merits.” (<i>City of Oakland v. Oakland Police & Fire Ret. Sys.</i> (2014) 224 Cal. App. 4th 210, 227.) “Claim preclusion, often referred to as res judicata, provides that ‘a valid, final judgment on the merits precludes parties or their privies from relitigating the same ‘cause of action’ in a subsequent suit.’” (<i>Id.</i>) “Application of the doctrine of res judicata ‘is intended to preserve the integrity of the judicial system, promote judicial economy, and protect litigants from harassment by vexatious litigation.’” (<i>Id.</i> at 228.) It “rests upon the sound policy of limiting litigation by preventing a party who has had one fair adversary hearing on an issue from again drawing it into controversy and subjecting the other party to further expense in its reexamination.” (<i>Id.</i>) “Claim preclusion bars a new lawsuit if the first case had (1) the same cause of action; (2) between the same parties, or parties in privity; and (3) a final judgment on the merits.” (<i>Brown v. Dave & Buster's of California, Inc.</i> (2025) 116 Cal. App. 5th 164, 169.) The “doctrine promotes judicial economy by requiring all claims based on the same cause of action that <i>were or could have been raised</i> to be decided in a single suit.” (<i>Id.</i> at 170 [emphasis in original].) If a claim “is actually raised by proper pleadings and treated as an issue in the cause, it is conclusively determined by the first judgment.” (<i>Thibodeau v. Crum</i> (1992) 4 Cal. App. 4th 749, 755.) “But the rule goes
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	further.” (<i>Id.</i>) “If the matter was within the scope of the action, related to the subject-matter and relevant to the issues, so that it could have been raised, the judgment is conclusive on it despite the fact that it was not in fact expressly pleaded or otherwise urged.” (<i>Id.</i>) “A party cannot by negligence or design withhold issues and litigate them in consecutive actions.” (<i>Id.</i>) “Hence the rule is that the prior judgment is res judicata on matters which were raised or could have been raised, on matters litigated or litigable.” (<i>Id.</i>) “[A] judgment in an employee's action under [PAGA] binds not only that employee but also the state labor law enforcement agencies,” and “[b]ecause an aggrieved employee's action under [PAGA] functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government.” (<i>Arias v. Superior Ct.</i> (2009) 46 Cal. 4th 969, 986.) When an employer has settled with another PAGA plaintiff, a trial court may grant the employer’s motion for judgment on the pleadings of a plaintiff’s PAGA claim on the grounds of claim preclusion. (<i>Brown</i>, 116 Cal. App. 5th at 166.) Claim preclusion applies to a PAGA claim when the settlement in another PAGA action “fully encompassed and released [the PAGA claim] . . . thus satisfying all elements of claim preclusion.” (<i>Id.</i> at 172.) In <i>Gutierrez</i>, Plaintiff Estrada unsuccessfully sought to intervene and vacate the <i>Gutierrez</i> Judgment and appealed such denial. On December 18, 2025, the Second Appellate District dismissed Plaintiff’s appeal and on March 18, 2026, the Supreme Court of California denied Plaintiff’s Petition for Review. Defendant previously sought an order for judgment on the pleadings, which the court denied on May 27, 2022, because the judgment in <i>Gutierrez</i> had not yet been finalized. Plaintiff had filed a notice of appeal and sought to vacate the judgment. The court then stayed the case pending the outcome of the <i>Gutierrez</i> appeals. (ROA 913.) As the appeals have now been resolved, the judgment is now final as to the PAGA claim in <i>Gutierrez</i>. As a threshold matter, the court did not take into consideration Plaintiff’s arguments regarding the propriety of the proceedings, settlement and judgment in the <i>Gutierrez</i> action
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		and appeals as they are outside the scope of this Motion and the court has no jurisdiction over those proceedings. The court also did not take into consideration Defendant's reliance on any facts that are outside the scope of the FAC or any facts that are not subject to judicial notice. It is undisputed that the type of Labor Code violations asserted in this action are subsumed by the type of Labor Code violations asserted in the <i>Gutierrez</i> settlement and judgment. However, Plaintiff argues in opposition that there is a patchwork of claims in this action that are not extinguished by the <i>Gutierrez</i> settlement and judgment. The January 11, 2022 final judgment in <i>Gutierrez</i> defined the aggrieved employees whose claims were released by the settlement as follows: The Aggrieved Employees, defined as all non-exempt and/or hourly employees in California who worked for Defendants for any portion of (i) the time period between February 18, 2018 and the date that the Court enters an Order approving the PAGA Settlement, and/or (ii) all non-exempt and/or hourly employees of Defendants in California who worked an on-call shift within one or more pay periods during the time period between January 1, 2012 and the date that the Court enters an Order approving the PAGA Settlement [which was January 11, 2022]. (Def's RJN, Ex. G.) Plaintiff contends his claim encompasses a larger employee group and a longer time period than the <i>Gutierrez</i> case. Plaintiff contends that he can still represent: (1) all California employees (both those classified as exempt and those classified as non-exempt) who worked from December 3, 2011 to January 1, 2012; (2) all California employees who did not work an "on-call shift" from January 1, 2012 to February 18, 2018; and (3) all California employees who worked for Defendant from January 11, 2022 to the present. First, Plaintiff contends that his PAGA claim includes claims for penalties for both exempt and non-exempt employees. However, neither Plaintiff's PAGA Notices nor the FAC make any mention of exempt employees, and Plaintiff is not an exempt employee. (Halberda Dec., Ex. A at p. 2 ["Estrada was classified as a nonexempt employee, he was required by [the Auto Club], once a week, every five weeks, to be 'on-call' 24
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		hours a day.”]; <i>see</i> FAC <i>generally</i>.) Thus, the court finds that this argument is without merit and not based on the pleadings in this action. Second, Plaintiff argues that he can seek PAGA penalties beginning from December 3, 2011, but that argument is based on a misunderstanding of the law. Defendant’s counsel claims that Judge Sherman ordered that the operative PAGA period began on January 7, 2012 in this Action, which was 1 year and 65 days of tolling from the filing date of Plaintiff’s Complaint on March 13, 2013, at a status conference on June 27, 2019. (Supp. Halberda Dec. ¶ 4, Ex. L.) However, this is outside of the pleadings and is not judicially noticeable as there is no record of any ruling by Judge Sherman. Nevertheless, the alleged finding is correct and based on the date Plaintiff filed this action, Plaintiff cannot seek PAGA penalties for any Labor Code violations earlier than January 7, 2012. “[A] PAGA action is subject to a one-year statute of limitations.” (<i>Hutcheson v. Superior Ct.</i> (2022) 74 Cal. App. 5th 932, 939 [citing CCP § 340(a)].) “The 65-day period following notice to the LWDA and employer is ‘not counted as part of the time limited for the commencement of the civil action to recover penalties’ under PAGA.” (<i>Id.</i>) CCP § 340(a) states that “[a]n action upon a statute for a penalty or forfeiture, if the action is given to an individual, or to an individual and the state, except if the statute imposing it prescribes a different limitation” must be brought “[w]ithin one year.” (CCP § 340(a) [emphasis added].) “The periods specified in [the PAGA statute] are not counted as part of the time limited for the commencement of the civil action to recover penalties under this part,” including the 65-day review period after a PAGA Notice is served on the LWDA. (Cal. Lab. Code § 2699.3(e).) Based on the foregoing, and harmonizing the statutes and the case law, the operative PAGA Period that Plaintiff can claim PAGA penalties is only one year before he filed this action plus 65 days tolling under PAGA. As there is a one-year statute of limitations for a claim for statutory penalties, only Labor Code violations occurring within one year of filing suit can be the basis for PAGA penalties. Since PAGA itself allows a 65-day tolling period, the correct PAGA period in this action starts on January 7, 2012, 1 year and 65 days before the case was filed on March 13, 2013.
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	Plaintiff improperly relies on the date of his PAGA notice as the measure for the one-year statute of limitations to claim PAGA penalties, but the statute of limitations for PAGA claims turns on when an action is filed, not when the LWDA notice is made. Plaintiff argues that the PAGA Period in this action should start on December 3, 2011 because he served the LWDA with notice of the Labor Code violations on December 3, 2012. However, Plaintiff’s only authority for this proposition is distinguishable from the facts in this case. In <i>Hutcheson v. Superior Ct.</i> (2022) 74 Cal. App. 5th 932, 936–37, the PAGA Period for which a plaintiff could claim PAGA penalties extended back to December 22, 2016 because an earlier plaintiff had provided PAGA notice to the LWDA on December 22, 2017 and when that plaintiff “did not receive any response from the LWDA within the statutorily required 65 days, . . . on the 66th day, February 26, 2018, as permitted by statute (§ 2699.3, subd. (a)(2)), he filed suit . . . alleging a single cause of action for penalties under PAGA.” Thus, the court permitted a PAGA Period start date of December 22, 2016 because it was one year and sixty-five days before the date that earlier plaintiff filed his lawsuit, which was February 26, 2018. Here, Plaintiff did not file suit as soon as possible (the 66th day after the December 3, 2012 PAGA notice was submitted, i.e. February 7, 2013), and instead waited until March 13, 2013. Due to Plaintiff’s delay in bringing suit, Plaintiff’s PAGA claim does not extend to penalties for Labor Code violations between December 3, 2011 and January 1, 2012. Plaintiff may be conflating the statute of limitations as it applies to the timing of serving the LWDA with a PAGA notice. Courts have stated that “the statute of limitations is [also] tied to the PAGA plaintiff’s individual claims, and that the PAGA plaintiff must bring a PAGA action (as noted above, by serving notice on the Agency) within one year of the last Labor Code violation he or she individually suffered.” (<i>Williams v. Alacrity Sols. Grp., LLC</i> (2025) 110 Cal. App. 5th 932, 942.) Here, there is no debate that Plaintiff filed the PAGA notice within one year of his last Labor Code violation. However, when Plaintiff must serve a PAGA notice is a different question than the question of how far back Plaintiff can seek PAGA penalties in a PAGA claim. Third, Plaintiff seeks to claim PAGA penalties for violations that occurred after the end of the time period encompassed by the <i>Gutierrez</i> settlement, i.e. January 11, 2022 to the present.
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		However, Plaintiff lacks standing to seek PAGA penalties for violations that occurred after his employment ended. “[T]he preclusion of [a plaintiff’s] claims for the period during which he was employed . . . deprives him of standing to assert claims arising exclusively after he was so employed.” (<i>Robinson v. S. Ctys. Oil Co.</i> (2020) 53 Cal. App. 5th 476, 484; <i>see also, e.g., Brown v. Dave & Buster’s of California, Inc.</i> (2025) 116 Cal. App. 5th 164, 169.) It is undisputed that Plaintiff’s employment was terminated on April 10, 2012. (SAC ¶ 7.) In sum, Plaintiff cannot seek penalties for the first group of “all California employees (both those classified as exempt and those classified as non-exempt) who worked from December 3, 2011 to January 1, 2012,” based on the applicable statute of limitations and the language in Plaintiff’s PAGA Notice and FAC. Plaintiff cannot seek PAGA penalties for the second group of “all California employees who did not work an ‘on-call shift’ from January 1, 2012 to February 18, 2018,” as the FAC does not include such employees. And finally, Plaintiff cannot seek PAGA penalties for the third group of “all California employees who worked for Defendant from January 11, 2022 to the present,” as Plaintiff lacks standing to bring a PAGA claim for Labor Code violations after he was terminated. Thus, there is no patchwork of remaining claims, and the only viable PAGA claim that remains is entirely subsumed by the <i>Gutierrez</i> settlement and judgment. The court finds that based on res judicata and claim preclusion, the <i>Gutierrez</i> settlement and judgment has extinguished Plaintiff’s remaining PAGA claim, and therefore GRANTS Defendant’s Motion for Judgment on the Pleadings. The court GRANTS Defendant’s requests for judicial notice of Exhibits A-D, H-N, and Q-U (filings in this action and the proceedings in the <i>Gutierrez</i> action), and Exhibits E-G, O-P and V-Y (orders and judgments in this action and the proceedings in the <i>Gutierrez</i> action). The court also GRANTS Plaintiff’s requests for judicial notice of the October 2, 2019 PAGA notice in <i>Gutierrez</i>, an exhibit attached to the complaint in <i>Gutierrez</i>, the complaint in <i>Gutierrez</i>, a declaration filed in support of a motion to stay in <i>Gutierrez</i>. (Cal. Evid. Code § 452(d).) Courts “may properly take judicial notice of a party’s earlier pleadings and positions as well as established facts from both the same case and other cases.” (<i>Cantu v. Resolution Tr. Corp.</i> (1992) 4 Cal. App. 4th 857, 877.)
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